

Smt Sangawa W/O Mallikarjun Tigadi vs Smt Savitri on 6 January, 2023

Author: Jyoti Mulimani

Bench: Jyoti Mulimani

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IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 06TH DAY OF JANUARY 2023

BEFORE

THE HON'BLE MS. JUSTICE JYOTI MULIMANI

REGULAR SECOND APPEAL NO.5099 OF 2008 (DEC)

BETWEEN:

SMT.SANGAWWA
W/O MALLIKARJUN TIGADI
AGE:32 YEARS
OCC: HOUSEHOLD WORK
R/O KHODANPUR
NOW AT SANGOLLI - 591 102
TAL: BAILHONGAL
DIST: BELGAUM.

...APPELLANT

(BY SRI.RAVI S. BALIKAI., ADVOCATE)

AND:

1. SMT.SAVITRI
CALLING HERSELF AS W/O MALLIKARJUN TIGADI
AGE:34 YEARS, OCC: HOUSEHOLD WORK
R/O KENGANUR - 591 102
TAL: BAILHONGAL, DIST:BELGAUM.

2. THE LIFE INSURANCE CORPORATION OF INDIA
MAIN BRANCH, BELGAUM - 590 001
BY ITS BRANCH MANAGER.

...RESPONDENTS

(BY SRI. NARAYAN V. YAJI, ADVOCATE FOR R2.
NOTICE TO R1 IS HELD SUFFICIENT)

THIS REGULAR SECOND APPEAL IS FILED UNDER SECTION

100 OF THE CIVIL PROCEDURE CODE, 1908, PRAYING TO SET
ASIDE THE JUDGMENT AND DECREE DATED 09.06.2008 PASSED

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BY THE PRL. CIVIL JUDGE (SR.DN.), BAILHONGAL IN
R.A.NO.16/2007.

THIS APPEAL HAVING BEEN HEARD AND RESERVED FOR
JUDGMENT ON 24.11.2022, COMING ON FOR PRONOUNCEMENT
OF JUDGMENT THIS DAY, SITTING AT PRINCIPAL BENCH,
BENGALURU, THE COURT DELIVERED THE FOLLOWING:

JUDGMENT

Sri.Ravi S.Balikai., learned counsel for appellant and Sri.Narayan V.Yaji., learned counsel for respondent No.2 has appeared in person.

2. This appeal is from the Court of the Principal Civil Judge (Sr.Dn), Bailhongal.

3. For the sake of convenience, the parties shall be referred to as per their status and ranking before the Trial Court.

4. The complaint averments are these:

The plaintiff pleaded that she is the legally wedded wife of Sri.Mallikarjun Basavanneppa Tigadi of Khodanpur. Her marriage with Mallikarjun Basavanneppa Tigadi was performed in Khodanpur Village at the time of the Sri Mouneshwar fair about 18 years back as per the customs and rituals. After the marriage, she joined her husband's company and led a marital life for about after 8 to 9 years. It is stated that Mallikarjun Basavanneppa Tigadi was serving in Forest Department, Athani. It is averred that after about eight to nine years, he started to put pressure on the plaintiff to get more gold and silver from her parents; the plaintiff pleaded with her inability to meet the illegal demands. It is said that she was ill-treated by her husband and the ill-treatment and the demand was only with an intention to desert the plaintiff as he was having illegal intimacy and relationship with the first defendant who hails from Kenganur Village. At last, she was driven out of her husband's house. The plaintiff then started to live with her parents at Sangolli.

It is averred that Mallikarjun Basavanneppa Tigadi did not care for the welfare of the plaintiff. As things stood thus, the plaintiff filed a maintenance case in Crl.Misc.No.57/1998 on the file of Civil Judge Junior Division, Bailhongal. The Court awarded the maintenance of Rs.250/- per month. Despite the order, the husband did not pay the awarded maintenance amount to the plaintiff hence, the plaintiff filed

Crl.Misc.No.09/2001 for recovery of the maintenance amount due. In the said proceedings, Mallikarjun Basavennappa Tigadi admitted that the plaintiff is his legally wedded wife and the matter was compromised before Lok-Adalat. It is pleaded that Mallikarjun Basavanneppa Tigadi died on 06.05.2003.

After the death of Mallikarjun Basavennappa Tigadi, the first defendant got an Heirship Certificate in her name and the name of her children and the mother of the deceased Mallikarjun Basavennappa Tigadi. The plaintiff contended that the Heirship Certificate issued by the Tahsildar is without inquiry. The plaintiff further pleaded that her husband had two life insurance policies (Nos.633803895 and 632017494) in Belgaum Branch and one policy in Athani Brach (bearing No.633803870). Contending that the first defendant made efforts to withdraw the amount, the plaintiff filed the suit seeking a declaration that she is the legally wedded wife of Mallikarjun Basavennappa Tigadi and other consequential reliefs.

After the issuance of the summons, the first defendant appeared through her counsel and filed a detailed written statement. She denied the averments made by the plaintiff in the plaint. She denied that the plaintiff is the legally wedded wife of Mallikarjun Basavennappa Tigadi. She pleaded that she is the legally wedded wife of Mallikarjun Basavennappa Tigadi and that her marriage was solemnized as per Hindu customs and rites at Chikkanandihalli Basaveshwara temple in the year 1997. She has further pleaded that as a natural course of action, Mallikarjun Basavennappa Tigadi nominated her as his wife in his service records. So far as the marriage of the plaintiff with Mallikarjun Basavennappa Tigadi, she pleaded that during the childhood of Mallikarjun Basavennappa Tigadi and the plaintiff, the parents of the plaintiff had made a proposal and she denied the marriage. She raised many pleas and sought for dismissal of the suit.

The Life Insurance Corporation of India - the second defendant filed a written statement. They stated that Mallikarjun Basavanneppa Tigadi was holding six LIC policies. The claim in respect of three policies stands paid to the first defendant as she was a nominee under these policies (Nos.633802700, 633856913 & 632017494). The claim in respect of the other three policies i.e., 633908321, 633803870 & 633803895 are repudiated because of suppression of material facts while taking the policies. Among other grounds, they prayed for the dismissal of the suit.

Based on the above pleadings, the Trial Court has framed the following issues:

ISSUES

1. Whether the plaintiff proves that she is the legally wedded first wife of deceased Mallikarjun Basavanneppa Tigadi?

2. Whether the plaintiff further proves that the legal heirship certificate obtained by defendant No.1 is incorrect and incomplete?
3. Whether the plaintiff further proves that she is entitled to all the service benefits of the deceased Mallikarjun Basavanneppa Tigadi?
4. Whether the plaintiff is entitled to the relief sought?
5. What order?

To substantiate the claim, the plaintiff was examined as PW1 and a witness as PW2 and produced five documents which were marked as Ex.P.1 to Ex.P.5. On the other hand, defendant No.1 was examined as DW1 and two witnesses were examined as DW2 & 3 and produced three documents which were marked as Ex.D1 to Ex.D3.

On the trial of the action, the plaintiff's suit was decreed in part. The operating portion of the Judgment reads as under:

"Suit of the plaintiff is partly decreed. It is declared that the plaintiff is the legally wedded first wife of deceased Mallikarjun Basavanneppa Tigadi who expired on 06.05.2003 when he was in the service of Forest Dept. at Athani and further it was declared that the survivorship certificate issued by the Tahasildar, Bailhongal is an incorrect and incomplete one.

It is further ordered and decreed that the plaintiff only being the first legally wedded wife is entitled to family pension and the job benefit from the service of deceased Mallikarjun Basavanneppa Tigadi, further the plaintiff being the first wife and defendant No.1 the second wife together entitled to 1/3rd share in other all the monitory benefits which include Provident fund, Gratuity, insurance amount due by D2, etc., about the deceased Mallikarjun Basavanneppa Tigadi.

It is further ordered that the children of defendant No.1 who is the second wife of the deceased Mallikarjun Basavanneppa tigadi by the name Praveen and Prakash are together entitled only for 1/3rd share in all the monitory benefits. The already received amount of Rs.1,32,405/- under the LIC Policy Nos.633802700, 633856913, and 632017494 shall be deducted in share amounts of defendant No.1, Praveen and Prakash proportionately as they have already taken the said amount from the defendant No.2 LIC.

It is further ordered that Smt.Ningavva who is the mother of deceased Mallikarjun Basavanneppa Tigadi is entitled to 1/3rd share in all the monitory benefits excluding the job and family pension amount benefit which are exclusively entitled to the plaintiff. As the plaintiff and defendant No.1 are relatives the parties are to bear their costs.

Draw decree accordingly."

Aggrieved by the Judgment and Decree of the Trial Court, the first defendant preferred an appeal in R.A.No.16/2007 on the file of Principal Civil Judge (Sr.Dn), Bailhongal. On appeal, the Appellate Court held that the marriage of Sangawwa and Mallikarjun is null and void, and accordingly, the Judgment and Decree of the Trial Court were set aside. Hence, this Regular Second Appeal is filed by the plaintiff under Section 100 of the Civil Procedure Code.

5. Learned counsel for the appellant and the second respondent have urged several contentions.

6. Heard the contentions urged on behalf of the respective parties and perused the records with care.

The suit giving rise to this appeal was filed by the plaintiff seeking a declaration that she is the legally wedded wife of Mallikarjun Basavennappa Tigadi. The issue before the Trial Court was quite simple, but it widened out as it went on appeal.

The appeal of the plaintiff is pressed upon distinct grounds. Even though the appeal is argued on a wider canvas, the short and narrow question which would go to the root of the matter is; whether a marriage solemnized in violation of the requirement as to age laid down in Clause

(iii) of Section 5 of the Hindu Marriage Act, 1955 (for short "H.M ACT") is void.

The first argument, in this case, centered around the marriage of the plaintiff with Mallikarjun Basavennappa Tigadi is not void as concluded by the First Appellate Court, and the second that a marriage solemnized in violation of the requirement as to age laid down in Clause (iii) of Section 5 of H.M Act is not void or even voidable.

Let me answer the above-said contentions. The plaintiff contended that she is the legally wedded wife of Mallikarjun Basavennappa Tigadi. The Trial Court extenso referred to the material on record and declared that the plaintiff is the legally wedded wife of Mallikarjun Basavennappa Tigadi. But the Appellate Court declared the marriage between the plaintiff & Mallikarjun Basavennappa Tigadi as null and void and had no legal effect because of the plaintiff's age.

The issue involved in the present appeal relates to Section 5(iii) and Section 18 of the Hindu Marriage Act, 1955. The first and main challenge is Section 5 (iii) of the Hindu Marriage Act, of 1955. Hence, it would be helpful to have a clear picture of the scheme of the Act.

Section 5 reads as under:

"5. CONDITIONS FOR A HINDU MARRIAGE.- A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:-

(i) neither party has a spouse living at the time of the marriage;

(ii) at the time of the marriage, neither party-

(a) is incapable of giving valid consent to it in consequence of unsoundness of mind;
or

(b) though capable of giving valid consent, has been suffering from a mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or

(c) has been subject to recurrent attacks of insanity

(iii) the bridegroom has completed the age of twenty-one years and the bride, the age of eighteen at the time of the marriage;

(iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits a marriage between the two;

(v) the parties are not sapindas of each other unless the custom or usage governing each of them permits marriage between the two."

Section 5 lays down the conditions for a Hindu marriage which must be fulfilled in case of any marriage between two Hindus which can be solemnized by the requirements of the Hindu Marriage Act, 1955.

Section 5 prescribes the conditions for a valid marriage that may be solemnized after the commencement of the Act. They are five in number. Condition No. (i) ensures monogamy. Condition No. (ii) refers to the mental capacity of one or the other person contracting the marriage and prohibits an idiot or lunatic from contracting the marriage. Condition No. (iii) prescribes a minimum age for the bride and the bridegroom for contracting marriage. This condition incidentally provides for the consent of the bride and the bridegroom to the bridegroom to marriage as the law treats them mature at a certain age. Condition No. (iv) forbids marriage of parties within the degrees of prohibited relationship unless the custom or usage governing each of them allows a marriage between the two. Condition No. (v) is similar in this difference that it prohibits marriage between two sapindas.

Section 11 is material. It provides that any marriage solemnized after the commencement of the Act shall be null and void and, on a petition, presented by either party thereto be so declared by a decree of nullity if it contravenes any one of the conditions specified in Clauses

(i), (iv) and (v) of Section 5. Incidentally at this stage, it may be noted that Section 11 does not render a marriage solemnized in violation of conditions (ii) and (iii) void, all of which prescribe personal incapacity for marriage. Section 12 provides that certain marriages shall be voidable and may be annulled by a decree of nullity on any of the grounds mentioned in the section.

Section 18 runs as under:

(b) in the case of a contravention of the condition specified in clause (iv) or clause (v) of section 5, with simple imprisonment which may extend to one month, or with a fine which may extend to one thousand rupees, or with both."

Reverting to the facts of the case and more particularly about the marriage, the plaintiff pleaded that she is married to Mallikarjun Basavennappa Tigadi.

"£À£Àß ªÄÈvÀ ¥ÀwAiÄÄÄ £À£ßÀ £ÄÄß ªÄ£É-ÄAzÀ °ÉÆgÄ °ÁQzÄÝjAzÀ ªÄvÄÄÛ £À£Àß G¥ÀfÄªÀ£ÀÐÈÌ J£ÀÆ ªÉªÄ, ÉÛ ªÄiÁqÄzÉÄ EzÄÄÝzÄÝjAzÀ £Á£ÄÄ ¨ÉÊ®°ÉÆAUÄ®zÀ ¥Àæxª Ä ÄÄ zÀ£ÉðAiÄÄ zÀAqÁçüPÁjUÄ¼Ä £ÄªAiÄiÄ®AiÄÄzÀ°£À£ßÀ ¥Àw-ÄAzÀ ¥ÉÆIV ¥ÄqÉAiÄÄªÄ ªÄ®ÄªÁV

Qæ.«Ä.57/98 £ÄÄß zÁR°¹zÉÝÄÉ. ªÄiÁ£ÄÄ £ÄÄAiÄiÄ@AiÄÄªÄÄ £Ä£Äß ªÄÄÈvÄ
YÄw-ÄAzÄ YÄæw wAUÄ½UÉ gÄÆ.250/- YÉÆIV YÄqÉAiÄÄªÄÄvÉ DzÉÄ±Ä
ªÄiÁrvÄÄ. YÉÆIV °ÄtzÄ ªÄ, ÄÆ°AiÄÄ, Ä®ÄªÄV Qæ.«Ä.9/2001 £ÄÄß PÄÆqÄ
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ªÄÄÄPÄÜAiÄÄªÄÄ-ÄvÄÄ."

A suggestion was made that she is not the wife of Mallikarjun Basavennappa Tigadi. But in her cross- examination, she has deposed as under:

"£Ä£ÄÄ ªÄÄ°èPÄdÄð£Ä wUÄr EvÄ£ÄÄ, Ä°ÉÆÄzÄgÄ ªÄiÁªÄ£ÄVzÄÝjAzÄ £ÄªÄÄ
aPÄIªÄgÄÄ EzÄÝUÄ, ÄzÄjÄ CªÄjUÉ £Ä£Äß£ÄÄß PÉÆIÄÖ ªÄÄzÄÄªÉ
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ªÄÄ°èPÄdÄð£Ä wUÄr EvÄ£Ä ªÄÄzÄÄªÄÄDV-Äè CÄvÄ °ÉÄ¼ÄÄªÄÄzÄÄ
, ÄjAiÄÄ-Äè. £Ä£Äß ªÄÄvÄÄÜ ªÄÄ°èPÄdÄð£Ä wUÄr EªÄgÄ ªÄÄzÄÄªÄÄ-ÄAzÄ
£ÄªÄÄUÉ ªÄÄPÄI¼ÄÄ DUÄjªÄÄç-Äè. £Ä£Äß ªÄÄvÄÄÜ ªÄÄ°èPÄdÄð£Ä wUÄr
EvÄ£Ä ªÄÄzÄÄªÄÄDV-Äè °ÄUÄÆ £Ä£ÄÄ CªÄ£Ä eÉÆvÉUÉ "Ä¼ÄÄªÉ ªÄiÁqÄ®Ä
°ÉÆÄUÄzÉÄ EzÄÄzÄÝjAzÄ £ÄªÄÄUÉ ªÄÄPÄI¼ÄÄ DV-Äè J£ÄÄßªÄÄzÄÄ
, ÄjAiÄÄ-Äè. ªÄÄ°èPÄdÄð£Ä wUÄr EvÄ£ÄÄ vÄ£Äß ªÄÄzÄÄªÄÄªÄÄ ªÄiÄÄ½UÉ
1£ÉÄ YÄæwªÄçAiÄiÄzÄ, Ä«wæ EªÄ¼ÄÄ£ÄÄß ªÄÄzÄÄªÄÄªÄÄiÄzÄ C£ÄÄßªÄÄzÄÄ
, ÄjAiÄÄ-Äè."

Ex.P.1 is the copy of the objections filed by Mallikarjun Basavennappa Tigadi in Crl.Misc.No.57/1998 wherein he has admitted that the plaintiff is his legally wedded wife. It is pivotal to note that he denied the marriage with the second defendant.

In Crl.Misc.No.57/1998, the Court directed Mallikarjun Basavennappa Tigadi to pay monthly maintenance of Rs.250/-. Since Mallikarjun Basavennappa Tigadi did not obey the order, hence the plaintiff was constrained to file a petition under Section 128 of the Cr. P.C in Crl.Misc.No.09/2001. It is interesting to note that the said petition was ended in a compromise.

Smt.Savitri - the second defendant was examined as DW1. She has deposed as under:

".....ªÄçAiÄÄÄ °ÉÄ¼ÄÄªÄÄvÉ CªÄ¼ÄÄ ®UÄßªÄÄ £Ä£Äß UÄAqÄ
ªÄÄ°èPÄdÄð£Ä wUÄr EvÄ£ÄÆAçUÉ 20 ªÄµÄðUÄ¼ÄÄ »AzÉ ªÄiÁ£ÉÄ±ÄégÄ
eÄvÉæAiÄÄ°è SÉÆÄzÄ£ÄYÄÆgÄ UÄæªÄÄ zÄ°èdgÄÄVvÄÄÜ K£ÄÄßªÄÄzÄÄ
, ÄÄ¼ÄÄî EgÄÄvÄÜzÉ. ªÄÄzÄÄªÄÄiÄzÄ £ÄAvÄgÄ CªÄ¼ÄÄ ªÄÄ°èPÄdÄð£Ä
wUÄr EvÄ£ÉÆAçUÉ 8-9 ªÄµÄðUÄ¼ÄÄ ªÄgÉUÉ "Ä¼ÄÉ ªÄiÁrzÄ¼ÄÄ JAŞzÄÄ
, ÄÄ¼ÄÄî EgÄÄvÄÜzÉ.ªÄçAiÄÄ ªÄÄzÄÄªÄÄªÄÄ £Ä£Äß UÄAqÄ
ªÄÄ°èPÄdÄð£Ä wUÄr EvÄ£Ä eÉÆvÉUÉ AiÄiÄªÄUÄÆªÄ DVÄiÉÄÄ EgÄÄªÄç®è
CªÄ¼ÄÄ £Ä£Äß UÄAqÄ£Ä PÄ£ÄÆ£ÄÄszÄÝ ®UÄßzÄ °ÉÄqÄw C£ÄÄßªÄÄzÄÄ
, ÄÄ¼ÄÄî EgÄÄvÄÜzÉ.ªÄÄ°èPÄdÄð£Ä wUÄr EvÄ£ÄÄ FUÉÎ 15
ªÄµÄðUÄ¼ÄÄ »AzÉ ªÄç, ÄAUÄªÄÉ EªÄ¼ÄÆ É AçUÉ eÄw jÄªÄdÄ YÄæPÄgÄ
ªÄÄzÄÄªÄÄDVzÄÝ£ÉÄÄßªÄÄzÄÄ, ÄjAiÄÄ-Äè. ÄAUÄªÄÉ wUÄr EªÄ¼ÄÄ ªÄiÄvÄæ
®UÄßzÄ °ÉÄqÄw CÄvÄ ªÄÄ°èPÄdÄð£Ä wUÄr EvÄ£Ä eÉÆvÉUÉ "Ä¼ÄÄªÄÄ

^aÀiÁrZÁÝ¼ÉÉÀÄß^aÄzÄÄ , ÀjAiÄÄ[−]Áè. ... 1998ÉÉÄ , ^Á°ÉÄ°è , ÄzÄjÄ
 , ÄAUÄ^aÁéÉÄÄ ^aÄÄ°èPÁdÄðÉÄ wUÄr EvÄÉÄ «gÄÄzÄð EzÉÄ ÉÄÄAiÄiÄ@AiÄÄzÄ°è
 Qæ«ÄÉÄ[−]i «Ä , Ä[−]ÉÄÄÄÄÄ , Ä ÉÄÄ§gĩ 57:98 ÉÉÄzÄÝÉÄÄß ÝÉÆÄlVUÄV
[°]ÄQzÄÝ¼ÄÄ JÉÄÄß^aÄÄzÄÄ , ÀjAiÄÄ[−]Áè. , ÄzÄjÄ CfðAiÄÄ°è ^aÄÄ°èPÁdÄðÉÄ wUÄr
 EvÄÉÄÄ ^aÄQÄ@gÄ ^aÄÄÄSÄAvÄgÄ çÉÄÄPÄ:27-5-1999gÄ°è vÄPÄgÄgÄÄ
 PÉÆnÖzÁÝ JÉÄÄß^aÄzÄÄ , ÀjAiÄÄ[−]Áè. ^aÄÄ°èPÁdÄðÉÄ wUÄr EvÄÉÄÄ vÄÉÄß
 vÄPÄgÄjÉÄ°è vÄÉÄß ^aÄÄvÄÄÜ , ÄAUÄ^aÁé¼ÄÄ ^aÄÄzÄÄ^aÉAiÄÄÄ PÄÄzÄ^aÄÄÝÄÆgÄ
 UÄæ^aÄÄzÄ ^aÄÄ^aÄÉÉÄ±ÄégÄ zÉÄ^aÄ , ÁÜÉÄzÄ°è 12 ^aÄµÄðUÄ¼ÄÄ »ÄzÉ
^aÄÄzÄÄ^aÉAiÄÄÄ DVvÄÄÜ CAvÄ vÄPÄgÄgÄÄ [°]ÄQzÄÝÉÉÉÄÄß^aÄzÄÄ , ÀjAiÄÄ[−]Áè.
 ... ^aÄÄ°èPÁdÄðÉÄ wUÄr EvÄÉÄÄ , ÄAUÄ^aÁé½UÉ 20,000-00
 gÄÆYÄ-ÄUÄ¼ÄÉÄÄß PÉÆlÄÖ ÝÉÆÄlV CfðAiÄÄ°è gÄfÄ ^aÀiÁrPÉÆArzÁÝ
 JÉÄÄß^aÄÄzÄÄ , Àj. , ÁQëzÄgÄ¼ÄÄ ^aÄÄ°èPÁdÄðÉÄ wUÄr EvÄÉÄÄ vÄÉÄß
 ÉËPÄjUÉ vÉÆAzÄgÉ ^aÀiÁqÄ¼¼ÄÄ CAvÄ D jÄw AiÄiÄ^aÄÄzÉÄ ^aÄÄzÄÄ^aÉ
 DVgÄzÄÉ EzÄÝgÄÆ PÄÆqÄ ÝÉÆÄlV CfðAiÄÄÉÄÄß gÄfÄ ^aÀiÁrPÉÆArzÁÝ CAvÄ
 , ÄévÄ°Ä ÉÄÄrçgÄÄvÄÜ¼É."

The material evidence, both the oral and documentary produced by the plaintiff is clinching to prove that she is the legally wedded wife of Mallikarjun Basavanneppa Tigadi. The maintenance proceedings filed by the plaintiff ended in the compromise before the competent court of law. Further, Exs.P.1, 2, 3, and P5 would show that Mallikarjun Basavanneppa Tigadi admitted before the Courts (in the maintenance case) that the plaintiff is his legal wife and he has provided the maintenance to his wife.

The learned Judge of the Appellate Court went into the matter and considered the question of the age of the plaintiff and held that the plaintiff was minor at the time of her marriage with Mallikarjun Basavanneppa Tigadi. Hence, the learned Judge declared the marriage void.

Suffice it to note that there is no pleading by either of the parties about the controversy regarding age. In the absence of pleadings and evidence, the Appellate Court is not justified in complicating the issue. Assuming for a while the plaintiff was underage, the law is well settled that the marriage cannot be declared as void and even voidable.

I may venture to say that the First Appellate Court has failed to have regard to relevant considerations and disregarded relevant matters. As is well known that a marriage solemnized in violation of the requirement of age laid down in Clause (iii) of Section 5 is not void or even voidable, but the contravention of the condition is punishable as an offense under Section 18 of the Act.

The law is well settled by this Court in V.MALLIKARJUNAIAH VS. H.C.GOWRAMMA reported in AIR 1997 KAR 77. The courts has observed as under :

"One needs to take cognizance of the fact that matrimonial laws do make various special provisions principally because of certain irreversible consequences that the parties find themselves faced with. One of them is the situation in which certain infirmities are disclosed in a marriage, and if there are children born from the

marriage, then the law through the process of legal fiction incorporates the provision of deemed legality. The whole purpose of this is to prevent the social consequences and the serious harm and damage that could occur to the parties as a result of infirmities in a marriage. The legislature has for valid reasons, thought it fit to exclude sub-clause (iii) of Section 5 from the grounds specified in Sections 11-13, based on which a marriage may be dissolved. The reason for this was quite obvious in so far as where misguided parents or relations may bind a young couple through a validly solemnized marriage, if at a subsequent point of time merely based on under-age, the marriage is to be declared as void, the consequences, particularly to the girl or the young woman, are irreversible. In situations such as the present one, they would have lived together as spouses for some time. There could also be situations in which children are born from that wedlock and in this background, it would not only be harsh but brutal if a Court were to technically void the marriage merely because the parties were underage. Obviously, in such a situation, the grave consequences of such a Court order could be visited upon the parties for no fault of theirs. Therefore, the decrees voiding marriages can only be passed on the grounds or in the situations set out in Sections 11 and 12 of the Hindu Marriage Act, 1955. The sub-clause (iii) provision of Section 5 cannot be added to the aforesaid."

A comprehensive review of the relevant provisions of the Act unmistakably manifests the legislative thrust that every marriage solemnized in contravention of one or other condition prescribed for a valid marriage is not void. Needless to say, a marriage solemnized in contravention of Clause (iii) is made penal.

When the minimum age of the bride and the bridegroom for a valid marriage is prescribed in condition

(iii) of Section 5 it would only mean personal incapacity on reaching the minimum age. Now, before reaching the minimum age if a marriage is contracted Section 11 does not render it void even though Section 18 makes it punishable. Therefore, even where a marriage in breach of a certain condition is made punishable yet the law does not treat it as void.

Therefore, the learned Judge of the Appellate Court, in my opinion, has entirely misunderstood the provision of the Hindu Marriage Act. The First Appellate Court is not justified in denying the plaintiff the status of the wife of Mallikarjun Basavanneppa Tigadi on the ground that her marriage with him was void, being in contravention of sub-clause (iii) of Section 5 of the Act. She cannot be denied the status of wife and, therefore, the widow of the deceased Mallikarjun Tigadi and in that capacity an heir to him.

The substantial question of law is answered accordingly.

The Regular Second Appeal is allowed and the Judgment and Decree dated 9th day of June 2008 passed by the Court of the Principal Civil Judge (Sr.Dn), Bailhongal at Bailhongal in R.A.No.16/2007 is set aside and the Judgment and Decree of the Trial Court dated the 30th day of

July 2007 passed by the Court of the Principal Civil Judge (Jr.Dn), Bailhongal at Bailhongal in O.S.No.31/2004 is confirmed and restored.

Sd/-

JUDGE TKN